

Holly Vale Photography

Wedding and Portrait Photography

Studio 4, Penberth Mill, Penzance TR19 6JZ
Tel: 07700 900 412 . hello@hollyvalephotography.co.uk . hollyvalephotography.co.uk

INVOICE

Invoice number **HV-2409-014** Issue date **28 September 2024**
Bill to **Sarah Mitchell and Tom Mitchell** Wedding date **21 March 2026**
14 Larkspur Avenue, Bristol BS6
7DH

Description	Qty	Unit	Amount
Full-day wedding coverage (10 hours, prep to first dance)	1	£2,500	£2,500
Online gallery (6 weeks delivery)	incl.	-	-
600+ edited high-resolution images	incl.	-	-
Personal-use print release	incl.	-	-
Subtotal:			£2,500
VAT (not registered):			£0
Total due:			£2,500
Deposit (paid 28/09/2024):			-£500
Balance due by 24/01/2026:			£2,000

Payment details

Bank: Pendennis Building Society
Sort code: 04-00-04
Account number: 71403392
Account name: H. Marsh t/a Holly Vale Photography
Reference: MITCHELL21MAR

Terms and Conditions

1. Definitions and acceptance

1.1 In these Terms, “the Photographer” means Holly Marsh trading as Holly Vale Photography; “the Client” means the person(s) named on the front of this invoice; “the Event” means the wedding identified by the wedding date on the front of this invoice; “Images” means all photographs taken or supplied by the Photographer in connection with the Event.

1.2 By paying the Deposit (defined at clause 2 below) the Client accepts these Terms in full. The Client acknowledges that they have read these Terms and have had the opportunity to ask questions about them prior to confirming the booking.

2. Booking, deposit and payment

2.1 Bookings are confirmed only on receipt of the non-refundable deposit of £500 (the “Deposit”).

2.2 The balance of the agreed fee is payable no later than 8 weeks before the date of the Event.

2.3 The Client may pay by bank transfer to the account shown on the front of this invoice. Cash payments are not accepted.

2.4 If the balance is not received by the due date, the Photographer reserves the right to cancel the booking and retain the Deposit.

3. Cancellation by the Client

3.1 If the Client cancels more than 12 weeks before the Event, the Deposit is forfeit and no further sums are payable.

3.2 If the Client cancels between 12 and 4 weeks before the Event, 50% of the total fee is payable (less any Deposit already received).

3.3 If the Client cancels within 4 weeks of the Event, the full fee is payable.

3.4 Cancellation must be notified in writing (by email is sufficient) to hello@hollyvalephotography.co.uk.

4. Postponement

4.1 The Client may, on no less than 8 weeks' written notice, request to postpone the Event to a new date within 12 months of the original Event date, subject to the Photographer's availability.

4.2 A postponement is not a cancellation, but the Photographer reserves the right to charge a reasonable administrative fee (not exceeding £150) to cover the additional work involved.

4.3 If no mutually acceptable new date can be agreed within the 12 month window, the booking shall be treated as a cancellation by the Client (clause 3) from the date the new date was first requested.

5. Cancellation by the Photographer and substitute photographer

5.1 If the Photographer is unable to attend the Event for any reason whatsoever, including illness, accident, or family emergency, the Photographer will use all reasonable endeavours to provide a substitute photographer of comparable experience and style (a "Substitute Photographer").

5.2 The Client agrees that the work of the Substitute Photographer will, for the purposes of this contract, be treated as the work of the Photographer.

5.3 If, in the Photographer's reasonable opinion, no Substitute Photographer of comparable experience can be found, the Photographer will refund all sums paid by the Client (including the Deposit) and shall have no further liability to the Client.

6. Force majeure

6.1 Neither party shall be liable for any failure to perform its obligations under this contract where such failure results from circumstances beyond its reasonable control, including (but not limited to) acts of God, accidents, fire, flood, severe weather, civil disturbance, terrorism, pandemic, or any restrictions imposed by competent authorities.

6.2 Where the Photographer is prevented from performing by force majeure, clause 5.1 (substitute photographer) shall apply with all necessary modifications. Where no Substitute Photographer can be found, all sums paid (less reasonable expenses already incurred) shall be refunded to the Client and the Photographer shall have no further liability.

7. Image delivery and post-production

7.1 Edited images will be delivered via an online password-protected gallery within 6 weeks of the Event.

7.2 The Photographer's editing style is set out in the portfolio shown to the Client at the time of booking. Beyond standard exposure, colour and contrast adjustments, no further editing (including retouching, removal of objects or persons, changes of clothing or weight, or significant compositing) is included in the agreed fee. Additional editing of this nature is available at the Photographer's then-current rate.

7.3 The Photographer will retain RAW (unprocessed) files for a minimum of 6 months from the date of delivery of the gallery, after which they may be deleted at the Photographer's discretion. RAW files will not be supplied to the Client.

8. Image storage and backup

8.1 The Photographer maintains an industry-standard backup regime: images are copied to two physically distinct devices on the Event day and then to a third (cloud) location within 48 hours.

8.2 The Photographer's online gallery will remain accessible to the Client for a minimum of 12 months from the date of delivery. Thereafter, the Client should ensure that they have downloaded and backed-up their images locally.

9. Copyright and usage

9.1 Copyright in all Images remains, at all times, with the Photographer.

9.2 The Client is granted a non-exclusive, perpetual, royalty-free licence to use the Images for personal purposes, including printing, sharing on personal social media, and use in personal photo albums.

9.3 The Client shall not (a) use the Images for any commercial purpose, (b) edit or alter the Images materially (including by applying filters or crops that materially change the Photographer's style) without the Photographer's prior written consent, or (c) re-license, re-sell or otherwise commercially exploit the Images.

9.4 The Client agrees that, where the Images are shared on social media, the Photographer's social-media handle (@hollyvale.weddings) will, where reasonably practicable, be tagged or credited.

10. Use of Images by the Photographer

10.1 The Client grants the Photographer the right to use a selection of the Images, on an unlimited, royalty-free basis, for the Photographer's own promotional purposes (including her website, social media, in printed marketing materials, and as samples shown to prospective clients).

10.2 If the Client wishes to opt out of this clause, they must notify the Photographer in writing prior to the Event. The Photographer reserves the right to charge a reasonable additional fee (not exceeding 15% of the total fee) where the right granted under clause 10.1 is withheld.

11. Wedding day expectations and conduct

11.1 The Client will provide the Photographer with a detailed schedule for the Event no later than 2 weeks before the Event date, including the timings of key moments (ceremony, group photographs, speeches, first dance) and any access or venue restrictions.

11.2 The Client will also provide a list of any specific group or family photographs they wish to be taken. Where no such list is provided, the Photographer will take a reasonable selection at her discretion.

11.3 The Photographer cannot guarantee the inclusion of any particular guest or moment if not notified in advance, or where access is unreasonably restricted.

11.4 If guests of the Client photograph or record the Event in a way that materially obstructs the Photographer's ability to capture key moments (for example, by standing in the aisle during the ceremony), the Photographer will not be liable for the resulting omissions.

12. Travel, meals and additional expenses

12.1 The agreed fee is inclusive of travel within the postcode region of the Event venue. Travel outside that region, including significant overnight expenses, will be agreed in writing in advance and added to the invoice.

12.2 Where the Photographer is engaged for 6 or more consecutive hours, the Client will provide a hot meal for the Photographer at or near the wedding breakfast time.

13. Equipment failure and unforeseen events

13.1 The Photographer carries duplicate camera bodies, lenses and memory cards on the day of the Event.

13.2 In the unlikely event of total equipment failure or other unforeseen catastrophic loss of Images (for example, the simultaneous failure of all backup systems), the Photographer's liability is limited to a refund of all sums paid by the Client. The Client expressly acknowledges that no further sum (including for loss of opportunity to recapture moments) will be payable, and that this limitation reflects the cost of the service and the availability of professional indemnity insurance.

14. Limitation of liability

14.1 Subject to clause 14.2, the Photographer's total liability to the Client (whether in contract, tort, breach of statutory duty or otherwise) arising under or in connection with this contract shall be limited to the total fee actually paid by the Client under this contract.

14.2 Nothing in these Terms limits or excludes the Photographer's liability for death or personal injury caused by negligence, fraud, or any other liability that cannot lawfully be limited or excluded.

14.3 The Photographer carries professional indemnity insurance and public liability insurance to industry-standard levels. Certificates can be supplied on reasonable request.

15. Data protection and privacy

15.1 The Photographer processes the Client's personal data in accordance with the UK GDPR and the Data Protection Act 2018. The Photographer's privacy notice is available at hollyvalephotography.co.uk/privacy.

15.2 The Photographer will not sell or transfer the Client's personal data to any third party except as expressly stated in the privacy notice or as required by law.

15.3 The Client may exercise their statutory rights (including the right of access and the right to erasure) by contacting the Photographer in writing.

16. Complaints

16.1 If the Client has any concern about the service provided, they should contact the Photographer in writing as soon as reasonably practicable, and in any event within 30 days of delivery of the gallery, setting out the nature of the concern.

16.2 The Photographer will acknowledge any written complaint within 7 days and provide a substantive response within 28 days.

17. Notices

17.1 Any notice under this contract shall be in writing and shall be deemed given if (a) sent by email to the addresses for the parties stated on the front of this invoice (and acknowledged), or (b) sent by first-class post to the addresses stated on the front of this invoice.

18. Severability and entire agreement

18.1 If any provision of these Terms is found by a court or other competent authority to be invalid, illegal or unenforceable, that provision shall be deemed deleted and the remaining provisions shall remain in full force and effect.

18.2 These Terms (together with the front of this invoice) constitute the entire agreement between the parties and supersede any prior representation, agreement or understanding.

19. Dispute resolution

19.1 The parties shall attempt in good faith to resolve any dispute arising under or in connection with this contract by direct negotiation.

19.2 If a dispute cannot be resolved by direct negotiation within 30 days, the parties shall consider in good faith referring the dispute to mediation by a CEDR-accredited mediator. Nothing in this clause prevents either party from commencing court proceedings, and either party may apply to the court for urgent injunctive relief at any time.

20. Governing law and jurisdiction

20.1 This contract and any dispute or claim arising out of or in connection with it (including non-contractual disputes or claims) shall be governed by and construed in accordance with the law of England and Wales.

20.2 The parties submit to the exclusive jurisdiction of the courts of England and Wales.

Holly Vale Photography is a sole trader business operated by Holly Marsh. Bookings are subject to the above terms.